

Form 15-78
(Rule 15-78)

COURT FILE NUMBER _____

COURT OF KING'S BENCH FOR SASKATCHEWAN
(FAMILY LAW DIVISION)

JUDICIAL CENTRE

PETITIONER _____

RESPONDENT _____

AFFIDAVIT OF PETITIONER (or RESPONDENT)

NOTICE

A party may apply for judgment on an uncontested basis claiming one or more remedies (divorce, parenting, child support, spousal support, property division, judicial separation, or nullity of marriage) if those claims have been set out in the documents commencing the family law proceeding. Depending on the specific remedies sought, Form 15-78 should be completed having regard for the corresponding rules in Part 15, Division 6, Subdivision 1 of *The King's Bench Rules* as to the documents, affidavit materials and other evidence to be filed in support of the application for judgment.

I, _____ of _____ ,
(name of petitioner/respondent) (name of city, town, other)

in the _____ of _____ ,
(province, state, country) (name of province, state, country)

Make Oath and Say/Affirm as follows:

GENERAL

1 I am the petitioner/respondent in this proceeding and I have personal knowledge of the
 2 matters and facts deposed to in this affidavit, except where stated to be on information
 3 learned from someone else and where that is stated, I believe the information to be true.

2 All of the facts and information contained in the Petition continue to remain true and accurate, except for the following: *(note here corrections or subsequent changes)*

3 (If there is a support claim and Part 15, Division 3 of the Rules requires that you file a Financial Statement.) All of the facts and information contained in my Financial Statement sworn/affirmed

_____ continue to remain true and accurate
(date of most recent statement)

[except for the following: *(note here corrections or subsequent changes)*].

4 *(If there is a property claim)* All of the facts and information contained in my Property Statement

sworn/affirmed _____ continue to remain true and accurate
(date of most recent statement)

[except for the following: *(note here corrections or subsequent changes)*].

5 I have *(or* The respondent/petitioner has) been ordinarily resident in Saskatchewan since the _____ day of _____, 2 _____ [*include if it is a divorce proceeding*], which is a period of at least one year immediately preceding the date of issue of the Petition in this proceeding].

RECONCILIATION

6 The following efforts to reconcile have been made:

- (a) I resumed cohabitation with the respondent/petitioner on or about the _____ day of _____, 2 _____, for the purpose of achieving a reconciliation, and continued cohabitation for that purpose until on or about the _____ day of _____, 2 _____, but a reconciliation was not achieved.

and/or

- (b) The respondent/petitioner and I consulted several individuals and agencies for counselling for the purpose of rehabilitating our marriage, including the following:

(i)

(ii) *etc.*

but a reconciliation was not achieved.

or

- (c) No efforts to reconcile have been made.

7 I do not wish to reconcile or to resume cohabitation with my spouse.

MARRIAGE BREAKDOWN

8 *(If no certificate of marriage or certificate of registration of marriage has been filed.) It is impossible or impractical to obtain a certificate of marriage or a certificate of registration of marriage. The particulars of the marriage are: (state sufficient particulars to prove the marriage)*

9 There has been a breakdown of my marriage to the respondent/petitioner by reason of the fact that:

- (a) I separated from the respondent/petitioner on or about the _____ day of _____, 2 _____, and have lived separate and apart from the respondent/petitioner since that date, which is a period in excess of one year.

and/or

- (b) The respondent/petitioner has committed adultery as evidenced by the respondent's/petitioner's affidavit filed in this proceeding (or by the certified transcript of the examination for discovery of the respondent/petitioner filed in this proceeding, *or as the case may be*).

I separated from the respondent/petitioner on or about the _____ day of _____, 2 _____, and I have lived separate and apart from the respondent/petitioner since that date.

and/or

- (c) Since the celebration of the marriage, the respondent/petitioner has treated me with physical and mental cruelty of such a kind as to render our continued cohabitation intolerable, particulars of which are as follows:

(i)

(ii) *etc.*

I separated from the respondent/petitioner on or about the _____ day of _____, 2 _____, and I have lived separate and apart from the respondent/petitioner since that date.

COLLUSION, CONDONATION AND CONNIVANCE

10 I have truthfully set out the facts establishing the breakdown of my marriage and I have not entered into any agreement, understanding or arrangement to makeup or hide evidence or to deceive the Court.

11 (*If adultery or cruelty is the basis of the marriage breakdown.*) I have not encouraged my spouse to act in the manner that I have outlined, nor to commit or continue the complained of acts. I am unable to forgive my spouse and resume cohabitation as a result of my spouse's acts or conduct towards me.

CHILDREN

12 There are no children of the respondent/petitioner or me who are in the care of either of us.

or

The names, dates of birth and place of residence of all children of the respondent/petitioner or me who are in the care of either of us are:

13 I am claiming a remedy with respect to the following children:

and/or

I am not claiming any remedy with respect to the following children:

because:

14 The present and proposed arrangements with respect to parenting of any or all children are as follows: (*If this is a split or shared parenting arrangement, specify the particulars of the residency of the children.*)

15 An order giving me (*or* the respondent/petitioner) decision-making responsibility (or joint decision-making responsibility) for the children is (*or is not*) in the best interests of the children because:

16 An order giving the respondent/petitioner (*or me*) parenting time with respect to the children is (*or is not*) in the best interests of the children because:

17 I seek support for the following children as follows:

Name of Child	Amount per month	Commencing

18 The condition, means, needs and other circumstances of the children are as follows:
(*Include any special conditions of a child and any special needs as well as general requirements.*)

19 (*In a divorce proceeding where there are children but no claim is made for child support.*)
The arrangements that have been made for the support of any children are as follows:

My income information required by the Federal Child Support Guidelines is attached as Exhibit “ _____”, and the income information of the respondent/petitioner required by the Federal Child Support Guidelines is attached as Exhibit “ _____”.

or

The respondent/petitioner and I have entered into an Agreement as to Child Support in Form 15-48B, a copy of which is attached as Exhibit “ _____”.

SPOUSAL SUPPORT

20 I do not seek a support order for myself.

or

I seek support for myself in the sum of \$ _____ per month.

21 My conditions, means, needs and other circumstances are as follows:

PROCEEDINGS AND AGREEMENTS

22 A previous court order with respect to (the marriage, cohabitation, parenting, support, maintenance, or division of property, as the case may be) was granted the _____ day of _____, 20____, in a proceeding under _____, a
(state statute under which relief granted)
copy of which is attached as Exhibit “ _____ ”.

and/or

23 No other legal proceeding has been commenced between the respondent/petitioner and me with respect to the marriage, cohabitation, parenting, support, maintenance or division of property.

24 The dates of all written or oral separation, financial or parenting agreements between the respondent/petitioner and me are: _____.

The agreement(s) pertain(s) to:

- ☐ parenting of the children
- ☐ child support
- ☐ spousal support
- ☐ division of property
- ☐ other (*specify*) _____

A copy of the agreement(s) is (are) attached as Exhibit(s) “_____”. (*Attach if it is relevant to the remedy claimed or if it pertains to any child in the care of either party.*)

or

24 There have been no written or oral separation, financial or parenting agreements between the respondent/petitioner and me.

25 Copies of other orders or agreements relating to any children who are in the care of the respondent/petitioner or me are attached as Exhibit “_____”.

FINANCIAL INFORMATION

26 My occupation is:

My place of employment is: _____

My current annual income from all sources is: \$ _____

Further particulars of my financial position are set out in my Financial Statement sworn/affirmed _____ .
(date)

(Or, if you are not required to file a Financial Statement, set out any necessary details here.)

27 The respondent's/petitioner's occupation is: _____

The respondent's/petitioner's place of employment is: _____

The respondent's/petitioner's current annual income from all sources is: \$ _____

The basis of my information and belief as to the occupation, employment and annual income of the respondent/petitioner is as follows (*e.g., The Financial Statement of the respondent/petitioner sworn/affirmed...; the Affidavit of the respondent/petitioner sworn/affirmed...; or as the case may be.*):

PROPERTY

28 The respondent/petitioner and I divided our property following our separation. I am satisfied with the current division of property.

or

(Include only if seeking an order incorporating a settlement or agreement.) The respondent/petitioner and I have settled, by consent, the division of our family property by way of Minutes of Settlement filed with the Court [*or* by way of an Interspousal Contract and Separation Agreement, a copy of which is attached as Exhibit " _____ "]. I am seeking an order incorporating this division of property.

or

I am seeking a judgment for the division of our family property, and attached as Exhibit " _____ " is a property schedule identifying the information required by Rule 15-86 of *The King's Bench Rules*.

JUDGMENT

29 The present address of the respondent/petitioner where service of the judgment may be made is:

and

29A The basis of my information and belief as to the address of the respondent/petitioner is:

or

29B Service of the judgment on the respondent/petitioner should be dispensed with for the following reasons:

30 *(If an earlier effective date for the divorce judgment is sought)* The divorce judgment should take effect on the day judgment is rendered (or on the _____ day following the day judgment is rendered) by reason of the following special circumstances:

and

30A An undertaking by the respondent/petitioner and me that no appeal from the judgment will be taken is attached as Exhibit “_____”.

31 I claim the following remedy: *(Set out in list form the remedy being requested.)*

32 Costs are claimed in the amount of \$ _____ for the following reasons:

SWORN (OR AFFIRMED) BEFORE ME

at, _____, Saskatchewan,

this _____ day of _____,

2 _____.

A Commissioner for Oaths for Saskatchewan

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(signature)

THIS AFFIDAVIT IS FILED ON BEHALF OF THE PETITIONER *(or)* RESPONDENT)

Amended, Gaz. 13 Oct. 2023.